

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 2, 2026
DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE TEMPORARY JUDGE

Counsel and parties are encouraged to appear remotely through Zoom videoconferencing, **unless otherwise ordered by the Court.** Department 30 is open for in person appearances.

Please note the following information for your reference:

Zoom videoconferencing for Department 30:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 2, 2026
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1. **MSP20-00586** **ESTATE OF FRANCISCO J. REYNOSO**
9:00 AM HEARING IN RE: FIRST AND FINAL REPORT AND PETITION FOR ORDER; FINAL DISTRIBUTION FILED ON
11/12/25 BY MARIA L. BARRON

Need:

1. Accounting that complies with PrC § 1060 *et seq.* Need losses as to 1979 Chevrolet El Camino and 2001 Infinity listed at schedule of losses, not schedule of disbursements.
2. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable, including loss on 1979 Chevrolet El Camino and 2001 Infinity.
3. Proposed Order

Note: Original will admitted 7-7-2020 is lodged in court file.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 2, 2026
DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

2. 9:00 AM	MSP21-00824 THE WILLIE L SPEARS SR. & BOBBIE JEAN SPEARS TRUST HEARING IN RE: PETITION FOR 1) SETTLEMENT OF FIRST ACCOUNT AND REPORT; 2) SETTLEMENT OF SECOND ACCOUNT AND REPORT; 3) SETTLEMENT OF THIRD AND FINAL ACCOUNT AND REPORT; 4) CONFIRMATION AND ALLOCATION OF TRUSTEE FEES, ATTORNEY FEES AND COSTS, INCLUDING ALLOCATION; AND 5) APPROVAL OF FINAL DISTRIBUTION OF TRUST ASSETS FILED BY MARK UNGER ON 11/13/25
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Need appearances

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
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DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

3. 9:00 AM	P23-00168 MATTER OF: THE RAYNA NEFF SPECIAL NEEDS TRUST HEARING IN RE: SECOND AND FINAL ACCOUNT AND REPORT FILED BY HERB THOMAS ON 11/13/25 Need: 1. Receipt from successor trustee for assets transferred as reported at Schedule C-1 2. Bond presented for filing before Order will be signed.
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DEPARTMENT 30
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4.	P23-00534	MATTER OF: THE ZACHARY WYVILL SPECIAL NEEDS TRUST
9:00 AM	HEARING IN RE: PETITION TO APPROVE TENTH AND FINAL ACCOUNT FILED BY HERB THOMAS ON11/13/25	
	Need: 1. Proof of mailing to all persons entitled to receive notice 2. Statement regarding bond per LR 7.111(b). 3. Verified declaration by attorney to show nature and difficulty of tasks performed, results achieved, benefit of services to the beneficiary, and to specify the amount requested for each category of service provided. CRC § 7.776 (also time and hourly rate) 4. Receipt from successor trustee for assets transferred as indicated at Schedule C-1 5. Proposed Order	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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5A. P23-00891 MATTER OF: THE EZELL EALY, JR. REVOCABLE LIVING TRUST DATED AUGUST 14, 2020

9:00 AM HEARING IN RE: PETITION TO REMOVE TRUSTEE FOR BREACH OF TRUST FILED BY ERIK EALY JR ON 11/12/25

Petitioner, son, still must do the following:

1. Appear at the hearing
2. Verify petition under penalty of perjury
3. Have a Judicial Council Form Notice of Hearing mailed to all persons entitled to receive notice, and file Proof of Service with court. PrC § 17203
4. File evidence of written demand for accounting as required by PrC §17200(b)(7).
5. Submit a proposed Order

Note: Petition for Instructions filed by Elton Ealy 2-3-2026, is set for hearing 6-16-2026.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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COURT CALENDAR FOR APRIL 2, 2026
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5B.	P23-00891	MATTER OF: THE EZELL EALY, JR. REVOCABLE LIVING TRUST DATED AUGUST 14, 2020
9:00 AM	HEARING IN RE: MOTION TO COMPEL TRUSTEE TO PROVIDE TRUST DOCUMENTS FILED BY ERIK EALY ON 4/22/25 - STATUS	
	Need: 1. Appearances to report status, including mediation ordered 11-13-2025 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203 3. Proposed Order	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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7. P24-02002 MATTER OF: THE AMY P MITCHELL FAMILY TRUST ESTABLISHED ON MAY 9, 2000, AND AMENDED ON SEPTEMBER 08, 2004

9:00 AM HEARING IN RE: PETITION FOR SUSPENDING OR REMOVING TRACEY MITCHELL AS SUCCESSOR TRUSTEE TO FAMILY TRUST FILED BY APRIL J CLARK ON 11/7/24 - TRIAL SETTING

Need appearances to report status, including mediation ordered 1-6-2026

Notes:

1. Per 3-27-2025 minute order, Tracey Mitchell appeared in objection, and court ordered written objections to be filed.
2. Per 1-6-2026 minute order, court deemed "Affidavit of Truth" filed by Tracey T. Mitchell 8-20-2025, as an objection.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 2, 2026
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| 8.
9:00 AM | P24-02142 ESTATE OF: CHRISTIANNE CHENEY
HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR ON WAIVER OF ACCOUNT FILED BY
EDWARD KRESS ON 11/13/25

Need:
<ol style="list-style-type: none">1. Evidence of appointment of Anne D'Olier as attorney-in-fact for Mark O. Cheney so court can confirm her authority to waive accounting on his behalf2. Accounting that complies with PrC § 1060 <i>et seq.</i>, if needed in resolution of above3. Verified declaration by petitioner to include sale price of each security so court can determine whether there were any losses on sale that should be included in statutory fee calculation4. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable.5. Revised, proposed Order as needed in resolution of above |
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 2, 2026
DEPARTMENT 30
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| 9.
9:00 AM | P24-02310 IN THE MATTER OF: RICHARD A. CHURCH, SR.
HEARING IN RE: PETITION FOR APPROVAL OF THE FIRST AND FINAL ACCOUNTING OF THE TRUST
FILED ON 11/12/25 BY LOREN ACUNA EMMANUEL

Need:
<ol style="list-style-type: none">1. Appearances2. Verified declaration in support of petitioner and attorney's fees paid as reported at schedule of disbursements. Statement showing services rendered, hours and rates charged so court can evaluate attorney fees reported. LR 7.450 |
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PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 2, 2026
DEPARTMENT 30
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10.

9:00 AM

P25-00366

ESTATE OF: ANA MARIA HENDRYX

HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR FILED BY AGNES HENDRYX ON 11/13/25

Need:

1. Verified declaration by petitioner to include an itemized list of expenses for which she is requesting reimbursement
2. Verified declaration by petitioner to clarify omnibus clause at page 7, ¶ 35. "Townson" is listed without a first name.
3. Revised, proposed Order as needed in resolution of above

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11. **P25-01517** **ESTATE OF: PAUL KREYE**
9:00 AM HEARING ON PETITION IN RE: SPOUSAL PROPERTY FILED 8/27/25 BY CAROLE ANN LITTLEJOHN

Need appearances

Notes:

1. Per 9-29-2025 minute order, court ordered objections to be filed by 1-7-2026.
2. Objection of Adrienne Coolidge filed 1-2-2026.
3. Per 1-7-2026 minute order, court ordered Objection to be served on Atty. Littorno by 1-9-2026. Need Proof of Service.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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12. P25-01544 MATTER OF: CARL JOHNSON

9:00 AM

HEARING IN RE: PETITION FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF SUCCESSOR TRUSTEE
FILED ON 09/02/2025 BY JACQUELINE OLIVER

Need:

1. Appearances
2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203

Notes:

1. Objection and Response filed by Carl A. Johnson 2-13-2026.
2. Stipulation and Order re: mediation sent to legal processing.

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13.

9:00 AM

P25-02037

MATTER OF: WYMAN H. FONG REVOCABLE TRUST

HEARING IN RE: PETITION TO INVALIDATE REVOCABLE TRUST; IMPOSE CONSTRUCTIVE TRUST; DECLARATORY RELIEF; BREACH OF FIDUCIARY DUTY; REMOVAL OF TRUSTEES; DOUBLE DAMAGES AND FEES; INJUNCTIVE RELIEF; ADDITIONAL CAUSES OF ACTION FILED ON 11/13/25 BY MIAO LAN HUANG-FONG

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

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DEPARTMENT 30
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14. 9:00 AM	P25-02061 MATTER OF: THE ELIZABETH J. SNOW SPECIAL NEEDS TRUST HEARING IN RE: PETITION FOR ORDER APPOINTING SUCCESSOR TRUSTEE FILED ON 11/17/25 BY HERB THOMAS Need appearances
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15.

9:00 AM

P25-02103

ESTATE OF: MELTON HERNANDEZ

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 11/21/25 BY MIGUEL HERNANDEZ

Need:

1. Appearances
2. Verified declaration by petitioner to clarify decedent's date of death. Petition states 6-28-2025; however, proposed Order reflects 8-28-2025.
3. Waiver of Bond by Heir or Beneficiary on mandatory Judicial Council Form DE-142. PrC § 8481

Notes:

1. Petition is filed by Miguel Hernandez, by and through his attorney in fact, Gina M. Sisneros. Miguel Hernandez is a parent of decedent and non-resident of the United States. It is unclear who signed petition and Waiver of Bond. See PrC § 8402(a)(4)
2. Proposed Order states Miguel Hernandez is to be appointed.
3. Nomination of Gina M. Sisneros as Administrator filed 1-7-2026.

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16. 9:31 AM	N26-0364 HEARING ON PETITION TO ESTABLISH BIRTH, DEATH, MARRIAGE	MATTER OF: CREA JONES
	Need appearances	